

21STCV36940 21STCV36940

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV36940 Hearing Date: July 28, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

28, 2026

CASE NAME: Alexandra

I. Rodriguez v. Raphael Aharonoff

CASE NO.: 21STCV36940

MOTION

FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiff

Alexandra I. Rodriguez

RESPONDING PARTY(S): Defendant Raphael Aharonoff

REQUESTED RELIEF:

1. An

order awarding \$39,002.500 in attorneys' fees and costs of \$4,588.05 to

Plaintiff as the prevailing party.

TENTATIVE RULING:

1. Motion

for an award of attorneys' fees is GRANTED as modified.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 6, 2021, Plaintiff Alexandra I. Rodriguez (Plaintiff) filed a complaint against Defendant Raphael Aharonoff (Defendant) with five causes of action for: (1) fraudulent inducement/intentional misrepresentation; (2) breach of contract; (3) rescission based on fraud; (4) declaration of constructive trust; and (5) declaratory relief.

According to the complaint, Defendant agreed to sell Plaintiff \$100,000 worth of gold and silver, accepted full payment, and signed documents acknowledging receipt of the funds. Defendant failed to deliver any of the promised precious metals within the contractual deadlines and refused to refund the \$100,000 despite repeated requests. The complaint alleges that Defendant never intended to perform, made fraudulent representations to induce the purchase, and deprived Plaintiff of her funds through misrepresentation and nonperformance.

On March 16, 2022, the court entered default judgment against Defendant.

On July 8, 2022, Defendant filed a motion to set aside the default judgment which the court GRANTED.

On December 13, 2022, Defendant filed an answer.

On April 10, 2024, Defendant filed a notice of stay of proceedings (bankruptcy).

On April 8, 2025, the court lifted the bankruptcy stay.

On February 27, 2026, a non-jury trial commenced and concluded. The court ruled as follows: (1) Judgment is entered in favor of Plaintiff and against Defendant on the cause of action for breach of contract in the principal amount of \$100,000, plus prejudgment interest at 10 percent per annum from April 6, 2021, and attorney's fees and costs to be determined by motion; (2) request for constructive trust is denied; (3) Judgment is entered

in favor of Defendant on the cause of action for fraudulent inducement/intentional misrepresentation; (4) Judgment is entered in favor of Defendant on the cause of action for rescission.

On March 18, 2026, the court entered judgment consistent with its ruling. The clerk served notice of entry of judgment that same date.

On May 13, 2026, Plaintiff filed the instant motion for attorney fees and costs. On July 16, 2026, Defendant filed an opposition. On July 21, 2026, Plaintiff filed a Reply.

LEGAL STANDARD:

With respect to attorney fees and costs, unless they are specifically provided for by statute (e.g., Cal. Code Civ. Proc. (CCP) §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).)

The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; *Gunlock Corp. v. Walk on Water, Inc.* (1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.)

The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably

expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) (“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Reg’l Planning Comm’n (1982) 134 Cal.App.3d 999, 1004.) (The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys’ fees award].) (Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) (The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.) ((((

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In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) (General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

ANALYSIS:

Plaintiff contends relief is proper because she is the prevailing party after trial, the contract calls for attorneys’ fees, and the fees incurred are reasonable.

Defendant argues that the entire bill consists of impermissible block billing and the bill includes nonrecoverable clerical time.

As a threshold matter, Plaintiff is the prevailing party entitled to attorneys’ fees. First, the court entered judgment in her favor on her breach of contract claim after trial. (May 18, 2026 Judgment.) The judgment

provides that she may seek attorneys' fees and costs as the prevailing party under the contract. (Ibid., see also February 27, 2026 Ruling after Non-Jury Trial.) Second, Plaintiff identified a contract under which she may recover attorneys' fees. (February 27, 2026 Ruling after Non-Jury Trial.) Therefore, she is the prevailing party entitled to fees.

A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred, and when they are properly challenged the burden of proof shifts to the party claiming them as costs." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Still, the Court is the ultimate arbiter in deciding whether expenses are reasonable.¿¿

To¿determine¿if the requested amount is reasonable, California courts¿utilize¿the lodestar method. The two-step process begins with the lodestar method, which is the time spent on the matter multiple by the hourly rate. After the lodestar method, the second step is¿determining¿whether a multiplier should be applied. The factors that Courts look at to determine if a multiplier is reasonable are: 1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Ketchum v. Moses¿(2001) 24 Cal.4th 1122, 1132.)¿

Rate¿

Plaintiff seeks the following hourly rates: \$650, \$300, \$150.

"In¿determining¿hourly rates, the court must look to the "prevailing market rates in the relevant community." (Bell v. Clackamas County¿(9th Cir.2003) 341 F.3d 858, 868.) The rates of comparable attorneys in the forum district are usually used. (See¿Gates v. Deukmejian¿(9th Cir.1992) 987 F.2d 1392, 1405.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting¿fees."¿(Heritage Pacific Financial, LLC v. Monroy¿(2013) 215 Cal.App.4th 972, 1009.)¿¿¿¿

Here, the rates are reasonable based on the experience of Ledezma, for associates and staff. (Ledezma Decl. ¶¶ 3,4.) However, billing at a high rate comes with the expectation that the attorney also works

in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours expended, below.

Hours:

Plaintiff seeks to recover 131.35 total hours.

"The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.) Although an attorney fee award may be based on counsel's declarations without the production of detailed time records (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375), the fee claimant nevertheless bears the burden of demonstrating that the hours claimed were reasonably expended. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Ultimately, the trial court is the arbiter of whether the fees requested are reasonable.

The Court has carefully reviewed Plaintiff's billing records. Defendant's contention that the hours claimed are excessive and unreasonable is well taken. The billing records contain numerous entries that raise substantial concerns regarding the necessity and reasonableness of the time expended. The examples discussed below are illustrative only and are not intended to be an exhaustive catalog of the deficiencies reflected in the fee bill.

This was a straightforward breach of contract action that culminated in a very short bench trial. Plaintiff presented its case-in-chief in approximately 60 minutes, calling a single witness and introducing three exhibits. Defendant's presentation consumed approximately one hour and consisted of one witness and two exhibits. Following closing argument, the matter was submitted and ruled upon the same day. In total, the trial required less than three hours of courtroom time.

Against that backdrop, several billing entries appear facially disproportionate to the work reasonably required. For example, lead counsel billed 1.5 hours at \$650 per hour to prepare for and attend the January 26, 2022 case management conference. Yet no answer had been filed, no case management statement had been submitted, Defendant failed to appear, and the hearing itself was routine and brief. The Court questions what preparation

justified the time claimed and notes that the entry appears to include travel time billed at counsel's full attorney rate.

Similarly, on December 13, 2022, counsel billed one hour at that same premium rate to review Defendant's three-page answer. The Court reviewed that pleading and found it to be a standard, template answer presenting no novel legal or factual issues. It is difficult to reconcile a full hour of attorney time for reviewing such a routine pleading with the level of efficiency expected of experienced litigation counsel billing \$650 per hour.

The billing records also reflect substantial duplication of work surrounding trial preparation. Trial was originally scheduled for February 2024. In anticipation of that trial, lead counsel billed three hours to prepare trial documents, while staff billed an additional six hours to prepare trial binders. The Court has reviewed the trial materials prepared at that time. They consisted of unremarkable filings, including a trial brief, witness list, and exhibit list totaling approximately five pages.

After the trial was continued, Plaintiff sought compensation for what appears to be substantially the same work. On December 2, 2025, an associate billed 10 hours to prepare trial documents. On February 20, 2026, the associate billed another 10 hours for trial preparation. Yet the trial materials had changed little, if at all. Two of the listed exhibits were the same documents attached to the complaint, with the primary addition being a deposition transcript. The witness list remained a single page, and the trial brief and statement of the case addressed straightforward issues. Given the simplicity of the case and the minimal changes to the trial materials, the Court finds it difficult to understand how preparation of substantially the same documents required an additional 20 attorney hours.

The Court is likewise concerned with the hours billed for the trial itself. The associate billed 10 hours for trial attendance, while staff separately billed 10 hours, including travel time. The Court recognizes that trial work often requires preparation before court convenes and work after proceedings conclude. Nevertheless, this was not a lengthy or complex trial. The Court appreciates that utilizing staff rather than second-chair counsel may reduce overall costs. Even so, the combined hours claimed for counsel and staff remain disproportionate to the nature and duration of the proceeding.

These examples are representative of broader concerns

reflected throughout the billing records, including entries for travel time, discovery-related tasks, and preparation of the attorney fee motion itself. For example, staff billed eight hours to prepare the fee motion, followed by an additional three hours of attorney time to review and finalize it. While each individual entry might conceivably be explained in isolation, viewed collectively the billing records reflect a pattern of excessive, duplicative, and inefficient billing that undermines the reliability of the claimed hours.

The question, then, is how the Court should account for these inefficiencies when it cannot reasonably rely on Plaintiff's billing records as an accurate measure of the time reasonably expended. The answer is not to conduct a line-by-line audit or to arbitrarily select a percentage reduction. Rather, in fulfilling its obligation to award only reasonable fees, the Court must draw upon its own experience and familiarity with the litigation in assessing the time that reasonably should have been required. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

Indeed, trial courts "are not required to identify each charge they find to be reasonable or unreasonable, necessary or unnecessary. . . . A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.) Likewise, trial courts "need not, and indeed should not, become green-eyeshade accountants. The essential goal in shifting fees . . . is to do rough justice, not to achieve auditing perfection." (Fox v. Vice (2011) 563 U.S. 826, 838.)

Accordingly, the Court finds that Plaintiff's billing records reflect a pattern of highly questionable and excessive billing entries. (See Morris, supra, 41 Cal.App.5th at p. 39.) Although every case presents its own unique circumstances, the Court has extensive experience evaluating fee requests in litigation of this nature and assessing the amount of attorney time reasonably required. Based upon that experience, the straightforward nature of this action, the simplicity of the issues presented, the brevity of the trial, and the significant amount of unnecessary, duplicative, and unreasonable work reflected in the billing records, the Court concludes that a reasonable lodestar is \$28,502.50.

To be clear, this determination is based not on any single billing entry but on the Court's overall assessment of the reasonableness and

reliability of the fee request, informed by its experience with comparable litigation and by the professed specialization of Plaintiff's counsel.

Costs

Plaintiff filed a cost memorandum claiming \$4,588.05. Defendant failed to file a timely motion to tax costs. The court reviewed the memorandum and finds the fees are reasonable.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for an award of attorneys' fees is GRANTED, as modified, awarding \$28,502.50 in attorney fees and \$4,588.05 in costs for a total award of \$33,090.55

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 28, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court